

Land Use Controls and Environmental Issues in Michigan

STUDY SHEET

Land

- **Private Land Use Controls and Terms**
 - Deed restrictions
 - Easements
 - Liens
 - Subdivision regulations
- **Public Land Use Controls and Terms**
 - Police power
 - Building code regulations and building permits o Certificate of occupancy and city certification
 - Escheat
 - Eminent domain
 - Taking
 - Zoning
- **Eminent Domain vs. Taking**
 - Eminent domain-Power of the government to take private land for public use
 - Taking-Private property is regulated by a government authority to the detriment of the landowner
- **CC&Rs**
 - Conditions-Contingencies under which a property might be won or lost if the condition is violated
 - Covenants-Agreements between two or more parties
 - Deed restrictions-Limits on the use or appearance of a given property
- **Wetland, Floodplains, and Waterfront Property**
 - Wetlands are identified under the Department of Environmental Quality
 - Floodplains are areas of low-lying property adjacent to a water source, such as a river
 - Waterfront
- If private property has navigable water as its waterfront, the water belongs to the public
- If private property has non-navigable water as its water front, the water is private

Zoning

- **Zoning Actions and Variances**
 - Moratorium-A temporary halt on new building
 - Variances
- Use variances-Allow the owner to use the land for a purpose that would otherwise be prohibited by the zoning in place
- Area variances-Allow the owner to use the land in a way that is not normally allowed by the physical or dimensional requirements of the current zoning
 - Special use permits - Require a public hearing

Environmental Issues

- **Environmental Acts**
 - CERCLA
 - SARA
 - RCRA
 - CWA
 - CAA
 - TSCA
- **Environmental Hazards and Concerns**
 - Outside the home
 - Underground storage tanks
 - Waste disposal sites
 - Brownfields
 - Inside the home
 - Asbestos
 - Radon
 - Mold
- **Michigan Environmental Regulations**
 - NREPA
 - Right to Farm Act

- Michigan Natural Resources and Environmental Protection Act